



POLICE DEPARTMENT

November 18, 2014

MEMORANDUM FOR: Police Commissioner

Re: Sergeant James Williams
Tax Registry No. 929363
43 Precinct
Disciplinary Case No. 2013-9033

The above-named member of the Department appeared before me on August 26, 2014 and September 8, 2014, charged with: consuming an intoxicant to the extent that he was unfit for duty; consuming an intoxicant to the extent that he was unfit for duty, while armed; and, physically resisting responding police officers during a frisk of his person. (Charges and Specifications are attached) The Department was represented by Michelle Alleyne, Esq., Department Advocate's Office, and Respondent was represented by John D' Alessandro, Esq., The Quinn Law Firm. The Department called Captain Sergio Centa, Lieutenant Kevin Darcey, Lieutenant Jordan Brofsky, Sergeant Edward Sandoval, Police Officer Daniel Barreto, Police Officer Colleen Donohue, and Police Officer Ana Arboleda as witnesses. Respondent testified on his own behalf. A stenographic transcript of the trial record is available for the Police Commissioner's review.

After evaluating the testimony and evidence presented at the hearing, and assessing the credibility of the witnesses, this tribunal finds Respondent not guilty of Specification Nos. 1, 2 and 3.

FINDINGS AND ANALYSIS

The following facts are undisputed. Respondent, a 13-year member of the Department, was promoted to Sergeant on June 29, 2012. The next day, June 30, 2012, was Respondent's regular day off. At about 1500 hours, he went to his mother's home to attend her block party on [REDACTED] Respondent had agreed to play music for her party and brought his laptop and speakers for that purpose. (Tr. 100, 106)

At about 2230 hours, as Respondent was packing up his equipment to leave, he recognized three men who were approaching the block. He immediately became concerned for his safety and that of his family because, four years earlier, one of these men had worked at a barbershop he owned and had "threatened to stab, jump and beat up" Respondent. At the time, Respondent notified the Threat Assessment Unit at the 75 Precinct and was given a radio to take home as a precaution. When these men threatened Respondent a second time, he put out a 10-13 call and they were arrested. Respondent followed-up by obtaining an order of protection. At the time of the block party the order of protection had expired. (Tr. 80, 100, 102-103, 108)

Respondent was "on guard" when one of the men against whom he had obtained an order of protection approached his mother's block party. Respondent testified that after they made eye contact, "someone said something and an argument began." (Tr. 102-103) Out of concern for her son's safety, Respondent's mother called 911 (Tr. 104, 109) A radio call went out for a 10-13 – a member of service needing assistance. Several officers arrived at the scene of the block party where 60 to 80 people were congregated. Witnesses at the hearing described the scene as confusing, chaotic and loud. Respondent

admits that he was “upset” about having encountered these threatening individuals and because he anticipated that police intervention “was going to be probably a problem” for him. (Tr. 71-74, 89-90, 104, 109)

Respondent became frustrated because he was trying to communicate that he was a sergeant, but did not believe he was being understood by the responding police officers. Respondent was carrying his off-duty firearm holstered in his waistband beneath his shirt. Respondent recalls being patted down and his shield and firearm being removed. At his department interview Respondent told investigators that he tried to “shake them off.” Respondent complied with Sergeant Darcey’s instructions to sit on the curb to separate him from the offenders and to ensure that the situation did not escalate any further. He was eventually taken to the 75 Precinct. No Breathalyzer test was administered. (Tr. 104, 109-113, 115) Prior to this incident, Respondent had a slightly torn meniscus in his right knee which caused him to limp “every once in a while.” (Tr. 112)

Unfit for Duty

In dispute is whether on June 30, 2012, Respondent consumed an intoxicant to the extent that he was unfit for duty while armed. Patrol Guide 203-04, Page 1, requires that officers be “fit for duty at all times, except when on sick report” and that they “not consume intoxicants to the extent that member becomes unfit for duty.” The Patrol Guide (Additional Data section) further dictates that:

All members of the service are required to remain fit for duty as specified above, and are reminded of their absolute responsibility to remain fit for duty while in possession of their firearms.

Respondent credibly admitted that he had consumed two alcoholic beverages at the block party, but vehemently denied that he was intoxicated or unfit for duty.

Specifically, Respondent testified that at about 1600 hours he consumed one drink consisting of vodka and cranberry juice and at 1900 hours he consumed a second drink consisting of cognac and juice. Both drinks were served in eight ounce plastic party cups. Respondent explained that his agitated demeanor that night was attributed to the fact that he was very upset about his encounter with a person who had threatened his life and not to his limited consumption of alcohol. (Tr. 101-102, 104-105)

The Department's case relies primarily on Captain Sergio Centa's testimony and written report documenting his determination that Respondent was unfit for duty. This tribunal has no reason to doubt the integrity of Captain Centa, however, this was a very chaotic and loud scene which could lend itself to mistakes and misinterpretations. Therefore, the reliability of the evidence presented by Captain Centa must be examined in light of the totality of circumstances and weighed against the entire record. This tribunal was particularly concerned that Captain Centa's testimony was both imprecise and materially inconsistent with the observations made by other officers who testified at the hearing. On balance, this tribunal concludes that the evidence presented by the Department was insufficient to establish that Respondent engaged in the charged misconduct.

At the hearing, Captain Centa testified that when he arrived at the scene, he observed Respondent sitting on the sidewalk. During their "few minutes" of interaction on the scene, Captain Centa observed that Respondent's eyes were bloodshot, that he smelled of alcohol and that he was "incoherent." He also noted that Respondent did not stand when being he questioned him, something that would be expected of an officer addressing a captain. (Tr. 73-75, 77, 81) Captain Centa further reported that when

Respondent stood, he was unsteady on his feet. (Tr. 75-77) At the 75 Precinct, a number of witnesses were interviewed about the verbal altercation, including Respondent and his mother. During the six hours it took to complete the investigation at the 75 Precinct, Captain Centa looked in on Respondent to ensure that he was "okay." Based on his observations, Captain Centa concluded at approximately 0600 hours that Respondent was still unfit for duty and noted that the strong smell of alcohol had not abated. (Tr. 76-77, 84-85) The Captain filled out a Supervisor's Fitness for Duty Report noting Respondent's "bloodshot" eyes, "strong" odor of alcohol; "indifferent" attitude; "sagging" balance and "slurred" speech. (Dep. Ex. 2)

Much of the evidence presented at the hearing failed to corroborate Captain Centa's observations and conclusions. The inconsistencies between Captain Centa and Lieutenant Kevin Darcey's observations are the most troubling. Although each filled out a Supervisor's Fitness for Duty Report noting that Respondent was unfit and that his eyes were "bloodshot," there are material differences in other notations. For example, Captain Centa describes the "odor of alcohol on [Respondent's] breath" as "strong," whereas Lieutenant Darcey describes it as "none." Captain Centa describes Respondent's clothes as "disheveled," whereas Lieutenant Darcey describes them as "neat." Captain Centa describes Respondent's attitude as "indifferent," whereas Lieutenant Darcey describes it as "combative." Captain Centa describes Respondent's balance as "sagging," whereas Lieutenant Darcey describes it as "steady." The differences are so significant that is almost as if they were describing two different people on the scene.

Moreover, at the hearing, Lieutenant Darcey seemed to attribute Respondent's agitated behavior to the circumstances. When asked about Respondent's demeanor, Lieutenant Darcey answered as follows:

He was combative. It was like I said, it was a very chaotic scene. There was a lot going on. It was like getting calls for an officer, there's a lot of cops there, a lot of civilians there. It was kind of hard to know exactly what's going on. (Tr. 91)

Within this context he described Respondent as "incoherent" and "combative." He could not discern what Respondent was saying because he was "Yelling [and] screaming. Not generally towards myself. But just in general at the scene." He described him as "incoherent" but then explained "that was not anything I was concerned with at the time" and stated that "like I said, it was a very chaotic scene." Lieutenant Darcey noted that Respondent was not disrespectful to him in any way and complied with his order to sit down on the sidewalk. Although Respondent's eyes were "red," Lieutenant Darcey did not detect any smell of alcohol on Respondent and never once observed any signs of outward intoxication. Lieutenant Darcey filled out a Supervisor's Fitness for Duty Report because, "That was the protocol. I was told to do so." (Tr. 90-94, 97; Dep. Ex.1)

None of the other officers on the scene corroborated Captain Centa's observation that Respondent smelled of alcohol, was unsteady on his feet, or thought that Respondent was intoxicated. Although these officers did not spend much time with Respondent, and it was not their responsibility to make a determination as to Respondent's fitness for duty, their observations are noteworthy. The following is a summary of their testimony:

- Lieutenant Jordan Brofsky observed Respondent sitting on the sidewalk and later observed him getting up. He found Respondent to be a "little slow to his feet" and stated that he looked "a little worn out." He did not smell alcohol on Respondent or observe him to be "overtly intoxicated." He testified that as

platoon commander it would have been part of his duties to determine if a member of service involved in an off-duty incident was fit for duty. He did not believe that Respondent was unfit for duty. (Tr. 37-39, 42-44)

- Sergeant Eduard Sandoval was with Respondent while on the scene. He testified that Respondent was coherent, spoke in a clear voice and did not smell of alcohol. Respondent followed his directions and, although clearly agitated, he was respectful toward him the entire time. Accordingly, Sergeant Sandoval did not take Respondent's ID or remove his weapon on the scene. (Tr. 25-27, 30-32)
- Police Officer Daniel Barreto testified that as he spoke to the occupant of a car, he saw Respondent approach and pushed him away to de-escalate the situation. Officer Barreto stated that he was only on the scene for a few minutes but during that time he did not suspect that Respondent was intoxicated and did not smell alcohol on him. He heard Respondent identify himself as a sergeant and did not hear him slur his speech. Although Respondent was clearly agitated at the situation, he did not interfere with the investigation and was respectful and compliant with orders. (Tr. 15,-19)
- Police Officer Colleen Donohue testified that Respondent identified himself to her as an off-duty sergeant and she accompanied him to the street. She found him to be "articulate," albeit upset. She did not observe any signs of intoxication such as slurred speech, glassy eyes, or unsteadiness. (Tr. 57-59)
- Police Officer Ana Arboleda testified that Respondent was agitated and that she pushed him back to separate him from the men arguing with him. Even though she came in close proximity to Respondent she did not notice any signs of intoxication and stated that Respondent was "never disrespectful" to her. (Tr. 64-69)

In conclusion, this tribunal believed Respondent's testimony concerning his limited alcohol consumption. I also credited Respondent's corroborated testimony that he was angry and fearful about his interaction with someone who had threatened his life. This was not an unreasonable reaction given his history with these men and their proximity to his mother's home. His anger about the situation, and the confusion resulting from a loud and chaotic scene, explain to a large degree Respondent's demeanor that night. Based on the totality of circumstances presented on the record, including the glaring discrepancies in the two Supervisor's Fitness for Duty Reports, I find that the

Department did not prove by a preponderance of the evidence that Respondent consumed alcohol to the extent that he was unfit for duty. As such, he is found not guilty of Specification Nos. 1 and 2. *Disciplinary Case No. 2012-7021* (signed August 18, 2014)(dismissed unfit for duty charge based on circumstances explaining respondent's disheveled clothes and angry demeanor)

Resisting a Frisk

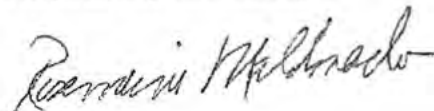
In dispute is whether Respondent was physically resistant to responding police officers during a frisk of his person. It is undisputed that at his Department Interview Respondent told investigators that he tried to "shake them off" when he was patted down. The evidence presented at the hearing, however, does not explain what was meant by this assertion. Furthermore, as summarized above, none of the responding officers provided testimony to support this claim. Although Officers Arboleda and Barreto both testified that they pushed Respondent away to separate him from the suspects, neither noted him as being resistant. Furthermore, Officer Arboleda testified that she removed Respondent's shield and firearm, but did not state that Respondent resisted this effort in any way. Accordingly, after evaluating the testimony presented at the hearing, and assessing the credibility of the witnesses, this tribunal finds Respondent not guilty of Specification No. 3.

APPROVED

DEC 11 2014

WILLIAM J. BRATTON
POLICE COMMISSIONER

Respectfully submitted,



Rosemarie Maldonado
Deputy Commissioner Trials

Charges and Specifications

1. Said Probationary Sergeant James Williams, while assigned to the Police Academy's Leadership Training Section, on or about June 30, 2012, did consume an intoxicant to the extent that said Probationary Sergeant was unfit for duty.

P.G. 203-04, Page 1, Paragraph 1 – FITNESS FOR DUTY
GENERAL REGULATIONS

2. Said Probationary Sergeant James Williams, while assigned to the Police Academy's Leadership Training Section, on or about June 30, 2012, did consume an intoxicant to the extent that said Probationary Sergeant was unfit for duty, while armed.

P.G. 203-04, Page 1 – ADDITIONAL DATA FITNESS FOR DUTY
GENERAL REGULATIONS

3. Said Probationary Sergeant James Williams, while off-duty and assigned to the Police Academy's Leadership Training Section, on or about June 30, 2012, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: during police response for a verbal altercation which said Probationary Sergeant was involved in with persons known to the Department, said Probationary Sergeant was physically resistant to responding police officers during a frisk of his person.

P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT
GENERAL REGULATIONS